

23GDCV00744 23GDCV00744

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23GDCV00744 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 9

Date: July 10, 2026

Case No: 23GDCV00744 Trial Date: Not yet set

Case Name: Golamirians v. General Motors, LLC et al.

MOTION TO DISMISS

Moving Party: Defendant, General Motors LLC

Responding Party: Plaintiff, Grigor Golamirians [Unopposed]

RELIEF REQUESTED:

An order dismissing Plaintiff's operative First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Violation of Subdivision (d) of Civil Code Section 1793.2

2) Violation of Subdivision (b) of Civil Code Section 1793.2

3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2

4) Breach of the Implied Warranty of Merchantability

5) Fraudulent Inducement – Concealment

REQUEST FOR JUDICIAL NOTICE

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

Pursuant to Defendant’s request, the Court takes judicial notice of the following: (1) Order Granting Preliminary Approval of Class Action Settlement [entered September 26, 2024] [ECF No. 174]; (2) Exclusion Report – Timely and Valid Requests for Exclusion [filed May 23, 2025]; and (3) Final Order and Judgment Granting Final Approval of Class Action Settlement [entered December 22, 2025] [ECF No. 309]. (RJN Exs. A-C.)

SUMMARY OF FACTS:

This is a lemon-law action. Grigor Golamirians (“Plaintiff”) alleges that on September 4, 2020, Plaintiff entered into a warranty contract with General Motors LLC (“Defendant”) regarding a 2020 Chevrolet Bolt. Plaintiff alleges that defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including, but not limited to, the battery and the electrical system, among other defects and non-conformities. Plaintiff alleges that Defendant has failed to either promptly replace the subject vehicle or to promptly make restitution in accordance with Song-Beverly Act.

ANALYSIS:

As generally understood, ‘[t]he doctrine of res judicata gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy.’ [Citation.] The doctrine ‘has a double aspect.’ [Citation.] ‘In its primary aspect,’ commonly known as claim preclusion, it ‘operates as a bar to the maintenance of a second suit between the same parties on the same cause of action. [Citation.]’ [Citation.] ‘In its secondary aspect,’ commonly known as collateral estoppel, ‘[t]he prior judgment ... “operates” ’ in ‘a second suit ... based on a different cause of action ... “as an estoppel or conclusive adjudication as to such issues in the second action as were actually litigated and determined in the first action.” [Citation.]’ [Citation.] ‘The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. [Citations.]’ [Citation.]’ (Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 797.)

The prior final judgment on the merits not only settles issues that were not actually litigated but also every issue that might have been raised and litigated in the first action. It also precludes litigation of the same cause of action on a different legal theory or for different relief. (Lincoln Property Co., N.C., Inc. v. The Travelers Indemnity Co. (2006) 137 Cal.App.4th 905, 912-913.)

Here, Defendant asserts that Plaintiff’s claims fall within the scope of the federal class action In re Chevrolet Bolt EV Battery Litigation, No. 2:20-cv-13256-TGB-CI (E.D. Mich.) (the “Bolt Class Action”), which alleged a defect in the battery system of model-year 2017-2022 Chevrolet Bolt electric vehicles and named GM among the defendants. On December 22, 2025, the federal court issued a final order approving the settlement in the Bolt Class Action and entering final judgment. (Caceres Decl.. ¶ 7, Ex. C.) Defendant asserts that under the terms of the settlement and the Court’s final order, all settlement class members who did not timely and properly submit a request for exclusion are bound by the settlement and final judgment, including the release of claims against Defendant GM. (Caceres Decl.. ¶ 7, Ex. C.)

The opt-out period for the Bolt Class Action Settlement closed on February 24, 2025. (Caceres Decl., ¶ 5, Ex. A). On May 23, 2025, the settlement administrator filed a declaration and exclusion report (the "Exclusion Report"), identifying the settlement class members who submitted a timely and valid request for exclusion. (Caceres Decl., ¶ 6, Ex. B.) Plaintiff's name does not appear on the Exclusion Report, nor do the last four digits of the subject vehicle's VIN appear in connection with Plaintiff. (Caceres Decl., ¶ 6, Ex. B.) Accordingly, Plaintiff did not submit a timely and valid request for exclusion and is therefore bound by the class settlement and final judgment.

Plaintiff did not file an opposition to the instant motion. However, Plaintiff's counsel filed a declaration regarding the status of the Bolt Class Action. Plaintiff's counsel asserts that Plaintiff delivered his electronically-executed Request to be Excluded Form on February 26, 2025 and delivered his wet-signature-executed Request to be Excluded Form on July 2, 2025. (Smith Decl., ¶¶ 3-4, Exs. A-B.) Counsel asserts that the "opt-out" signatures submitted by the Plaintiff were rejected by the Federal Court thereby rejecting the exclusion requests submitted on behalf of the Plaintiff. (Smith Decl., ¶ 6.) Plaintiff is in the process of appealing that decision. (Smith Decl., ¶ 7.)

Plaintiff's counsel does not address how the foregoing events affect the instant motion or request any alternative relief. Moreover, a declaration from counsel does not constitute a legally sufficient opposition to a motion. (See CRC rule 3.1113.)

Accordingly, the Court finds that the instant action is barred by the doctrine of res judicata. The motion is GRANTED.

RULING:

Defendant General Motors LLC'S Motion to Dismiss is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.